



**JABATAN PEMBANGUNAN KEMAHIRAN  
KEMENTERIAN SUMBER MANUSIA  
ARAS 7 & 8 BLOK D4, KOMPLEKS D  
PUSAT PENTADBIRAN KERAJAAN PERSEKUTUAN  
62530 PUTRAJAYA**

**KERTAS PENERANGAN**  
(*INFORMATION SHEET*)

|                                                                             |                                                                                                                   |                                                     |
|-----------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|
| <b>KOD DAN NAMA PROGRAM /</b><br><i>PROGRAM'S CODE AND NAME</i>             | <b>Z-009-3:2015CORE ABILITIES</b>                                                                                 |                                                     |
| <b>TAHAP / LEVEL</b>                                                        | <b>3 (THREE)</b>                                                                                                  |                                                     |
| <b>NO. DAN TAJUK KEBOLEHAN TERAS /</b><br><i>CORE ABILITY NO. AND TITLE</i> | <b>CA06 HEALTH, SAFETY AND ENVIRONMENTAL IMPLEMENT CONSCIOUSNESS</b>                                              |                                                     |
| <b>NO. DAN PENYATAAN KEBOLEHAN /</b><br><i>ABILITY NO. AND STATEMENT</i>    | 6.1 EXECUTE HEALTH CONSCIOUSNESS<br><b>6.2 EXECUTE SAFETY CONSCIOUSNESS</b><br>6.3 EXECUTE ENVIRONMENT COMPLIANCE |                                                     |
| <b>NO. KOD / CODE NO.</b>                                                   | <b>Z-009-3:2015–M06/P(3/4)</b>                                                                                    | <b>Mukasurat/ Page :44</b><br><b>Drpd / of : 13</b> |

**TAJUK/TITLE: ACCIDENT INVESTIGATION AND REPORTING**

**TUJUAN/PURPOSE:**

This Information Sheet is intended to describe on the Accident Investigation and Reporting. The person who is competent in Health, safety and environmental consciousness shall be able to execute health consciousness, execute safety consciousness and execute environment compliance. The person who is competent in this CA shall be able to execute his/her job functions in accordance to the requirements of health, safety and environment rules and regulations.

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## **PENERANGAN/INFORMATION:**

### **1.0 Introduction**

Occupational Safety And Health (Notification Of Accident, Dangerous Occurrence, Occupational Poisoning And Occupational Disease) Regulations 2004

#### **PART I - PRELIMINARY**

Regulation 1. Citation.

Regulation 2. Interpretation.

Regulation 3. Application.

**PART II - Notification And Reporting Of Accident, Dangerous Occurrence, Occupational Poisoning And Occupational Disease**

Regulation 4. Exemption from Part II.

Regulation 5. Notification and reporting of accident and dangerous occurrence.

Regulation 6. Exemption from requirement of regulation 5 to self-employed persons.

Regulation 7. Reporting of cases of occupational poisoning and occupational disease.

Regulation 8. Exemption from requirement of regulation 7 to self-employed persons.

**Part III - No Interference At Accident Or Dangerous Occurrencescene**

Regulation 9. No interference at accident or dangerous occurrence scene.

**PART IV - Maintenance Of All Records Of Accident, Dangerous Occurrence, Occupational Poisoning And Occupational Disease**

Regulation 10. Records.

Regulation 11. Requirement of further information.

#### **PART V - Miscellaneous**

Regulation 12. Amendment of Schedule.

Regulation 13. Penalty.

### **2.0 Reporting Requirements Under OSHA 1994**

Section 32(1) require employer to notify the nearest OSH office if any of the following

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has occurred or is likely to occur:-

- accident
- dangerous occurrence
- occupational poisoning
- occupational disease

Section 32(2) require every registered medical practitioner attending or visiting a patient whom he believes to be suffering from any diseases listed under FMA 1967 or any regulation made under OSHA 94 to report the matter to Director General

This Regulation shall apply to all places of work

The compliance with these Regulations shall be deemed to have complied with

- The Factories and Machinery Act 1967
- Petroleum ( Safety Measures) Regulations 1985
- CIMAH Regulations 1996

### **3.0 Exemption**

Reporting of death, injury or condition of a person shall not apply to a patient undergoing treatment in a hospital or surgery by a doctor or dentist.

Any accident arising out of or in connection with work that cause

- Death

Or

- Serious bodily injury (1st Schedule) which prevents the person from doing his normal occupation for more than 4 calendar days (continuously)

Or

- When a dangerous occurrence (2nd Schedule)

takes place The employer shall notify the nearest DOSH by the quickest means = telephone or fax Within 7 days send a report in an approved form –JKKP 6

Whenever an accident arising out of work which causes –

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Bodily injury preventing a person from working for more than 4 calendar days – the employer within 7 days send a written report in an approved form to DOSH – JKPP 6

When an employee died within 1 year after suffering from injury, the employer shall inform in writing to the DG, whether or not the accident has been reported earlier

An employer shall send a report in an approved form to DOSH within 7 days where a person at work suffers from one of the occupational poisoning or occupational disease in the 3rd Schedule – JKPP 7

(2) A registered medical practitioner or medical officer attending to a patient suffering from any one of the OP or OD listed in the 3<sup>rd</sup> Schedule shall within 7 days report to DG and notify the employer of the patient – JKPP 7

No person shall interfere by removing or disturbing anything at the site of the accident or dangerous occurrence except being authorised to do so to the extent :-

- to save lives, prevent injury or relieve suffering of persons
- maintain the access of general public
- prevent further damage or serious loss of Property

Every employer shall maintain records of all accidents, dangerous occurrences, occupational diseases and occupational poisonings that have occurred related to work under his control in a register in an approved form – JKPP 8

- The record is to be kept at the place of work or business for 5 years
- The extract from the registry for a period of 1 year to be sent to DG before 31 January of each year.

Any person who contravenes any provision of these Regulations commits an offence and shall on conviction be liable to a fine not exceeding ten thousand ringgit or to imprisonment for a term not exceeding one year or to both.

#### **4. Accident Investigation And Analysis**

##### **4.1 Purpose**

The purpose of accident investigations and analysis is to provide information regarding accident investigation techniques and procedures. An accident is broadly defined as an undesired event that results in physical harm to a person or damage to property and/or the interruption of a process. It also includes events that result in a non-injury, a near miss, an occupational illness, or exposure to hazardous substances.

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These guidelines do not provide a ready answer to accident prevention, but rather a guide to aid in accident investigations, analysis, and corrective action. Corrective action must focus on such things as eliminating unsafe conditions and correcting unsafe acts.

#### 4.2 Policy Statement

Supervisors shall investigate, analyze, and document every vehicle accident, occupational injury and/or illness, and all near miss occurrences. The investigation should be conducted in a timely manner to identify contributing factors that will prevent further incidents. When possible, the investigation should be initiated within 24 hours and completed within 72 hours of the accident. of the accident.

#### 4.3 Who Conducts Accident Investigations

##### i. First-Line Supervisor

The first-line supervisor investigates all accidents in accordance with departmental policy. The first-line supervisor is typically on the scene and thus would have more knowledge regarding the accident and accident scene.

##### ii. Second-Line Supervisor

The second-line supervisor ensures that the first-line supervisor conducts the accident investigation and reviews the first-line supervisor's findings. The reviewing supervisor shall follow-up with the first-line supervisor to ensure that all corrective measures have been taken to avoid further accidents.

##### iii. Safety Specialist

The Safety Specialist advises and/or assists in the investigative effort. Safety Specialist representatives from district or Headquarters Offices of Safety and Health have specialized training and experience that enables them to determine the facts, apparent and hidden. Safety Specialists are impartial and their primary interest is to gather information that can be used to prevent future similar accidents as well as identify policy and regulation violations and suggest corrective measures.

#### 4.4 Accident Scene Investigation

Investigation of accidents should be conducted as soon as possible. Any delay may result in evidence being altered, destroyed or removed.

The purpose of a documented review of the accident scene is to:

- Identify and locate the physical evidence (materials/machines/tools) involved in the accident;
- Reveal deficiencies in operating policies, processes and procedures; and
- Discover unsafe work practices caused by a lack of training.

The purpose of an accident investigation is to find facts not assign fault. The facts will then serve as a guide to the conditions that caused the accident. The facts should identify the "why" or root cause of the accident as well as the "who, what, when, where, and how."

Fact-finding assists the investigators to expand their thinking and not focus solely on the type of accident or the injury. A broader view of the facts surrounding the accident will help point to contributing factors that lead to the root cause. This expanded view also assists investigators to identify a variety of preventive measures that may be used to correct future similar situations or conditions.

The following information lists a variety of areas that should be included in an accident investigation:

##### i) Work Characteristics

What are the type of work activities and the size of the operation? How many employees are involved? Too many? Too few?

##### ii) Environment

Was the weather a contributing factor: clear/rain/snow? Were the conditions of the workplace a factor: in disarray/hazards uncorrected?

##### iii) Time Factors

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The accident investigation report should describe the time of day, and how it relates to the shift, whether first hour or last: swing shift/straight eight/rotating; also the phase of the employees work: performing work/rest period/lunch period/overtime/entering or leaving the work site/building/office.

iv) Employee Characteristics

What is the victim's work experience? How often is the work activity repeated? How often has the employee engaged in such work? How much training was provided and when was the last training?

v) A Narrative Description

Explain what the person was doing. What objects were involved? Which actions and movements led to the accident?

vi) Equipment Characteristics

Describe the type, brand/model/size and any distinguishing features/condition/specific part of the equipment involved (include the identification number, and any known modifications that may have been made to the equipment). Was the safety equipment or guard removed or properly utilized?

vii) Characteristics Of The Task

What was the general task being performed (e.g., repairing a wing plow) and the specific activity (e.g., using a power impact wrench)? The posture and location of employee? Working alone or with others? Was this the correct tool for the task?

viii) Preventive Measures

What personal protective equipment was being worn? What kind of training did the employee have for the task he/she was performing? Did standards for the procedure exist? Were they written? Were they followed? Where was the supervisor at the time of the accident?

ix) ACCIDENT SEVERITY

Describe the nature of the injury or injuries and parts of the body affected. Was more than one employee injured?

## 4.5 Investigative Factors

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The countless number of situations and contributing factors precludes listing all the questions that may apply to a specific accident or event. The following list is generally applicable and should be considered in addition to the statements shown on the accident investigation form.

- i) What were others doing at the time of the accident?
- ii) Was the person following clearly defined procedures?
- iii) Was the process or task new to the group?
- iv) Did the person/crew receive hazard recognition training?
- v) Was the person doing authorized work?
- vi) Was the person qualified to do the work?
- vii) Was the correct equipment being used?
- viii) Where was the supervisor?
- ix) Was some type of corrective action previously suggested but not taken?

After reviewing these statements, the final analysis should suggest specific corrective action(s) that will prevent recurrences of events that led to the accident.

#### 4.6 Corrective Action

For corrective action to take place, the investigator must present facts that show the incident would not have happened if an event had not taken place. To do this, the investigator must first reach a basic understanding of events and the sequence in which they occurred. The following factors should be analyzed:

- i) MACHINES Hazardous conditions/construction/design; and Equipment, tools, and objects.
- ii) PHYSICAL WORK ENVIRONMENT Location of equipment, tools, and objects in the workplace Location of employees in the work space
- iii) EMPLOYEES Action/task/activity Work procedures Personal protective equipment
- iv) MANAGEMENT Supervision Program evaluation Training

When the event requiring corrective action is isolated, the corrective action must be evaluated on the basis of practicality, cost, feasibility, reliability, and acceptance.

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The investigator then must determine if an unsafe condition or act caused the event. An unsafe condition is a mechanical and/or physical hazard that is recognized but not corrected and/or ignored, or an unrecognized mechanical and/or physical hazard. An unsafe act is an employee deviation from a written and/or verbal instruction, policy, procedure or work practice.

The following causes of unsafe acts are considered the most frequent cause of accidents:

- Physical inability • Overconfidence • Absentmindedness
- Boredom • Disregard of danger • Undue haste
- Distraction • Anger • Indifference
- Impatience • Horseplay • Fatigue
- Resentment of authority • Inattention to instruction • Stress
- Anxiety

When other questions come to mind, they should be recorded and answered. Summarize the information and record all the facts on the accident report.

The following illustrates some of the contributing human factors listed above:

A worker who lacks skill at a job of loading heavy parts may become fatigued from his/her efforts to do what a more skilled worker would do easily. This same unskilled worker may fall behind and then try to hurry to catch up. Encountering a minor difficulty, he/she may lose patience and throw his/her weight needlessly into the task resulting in a fall or other injury. It is easy to recognize that contributing factors to the unsafe act may have been anxiety or impatience. Other factors were undue haste, fatigue, and a lack of skill. However, the *root cause* was a lack of proper training.

#### 4.7 Preparing The Investigative Report

Accurate records of accidents or near-misses are essential to a successful accident investigation and analysis program. Well-documented accident investigations will contain information that can be used to avoid future accidents.

The investigation should be handled by the supervisor and reviewed by others as may be deemed appropriate. The investigator should know the nature of the work, how it should be performed, and under what conditions it was performed. The investigator's

questions and attitude should demonstrate that the purpose is to gather the facts, not find fault or fix blame.

The investigation should point to the cause of the accident and answer the following questions:

- At what point did the system break down?
- Were rules and regulations violated?
- Did poor layout of the job, process, or operation contribute to the accident?
- What human or environmental factors contributed to the accident?

The investigator should start with reviewing and assessing the accident scene. The events that led up to the accident should be reconstructed. A walk-through and talk through re-enactment may help explain relationships between the work crew or person, the machine, and the environment.

Never Ask An Employee(S) To Repeat A Job Where An Obvious Violation Of Directives Or An Unsafe Work Practice Is Evident.

To document the accident scene, take pictures, measure, and draw a diagram. List all the machines, equipment, and materials that were being used. Obtain a list of witnesses. If an injury is minor, proceed with the investigation; however, if there are seriously injuries, the investigation should be postponed until medical needs have received attention.

#### 4.8 Completing The Accident Investigation Form

This chapter provides two (2) accident investigation forms. The first is a short-version, two-page document that should be used when injuries require first aide only. The second form is six (6) pages and provides for a more in-depth analysis.

Reviews And Approvals:

The following is a list of individuals who shall review the Accident Investigation Form:

- i) Supervisor
- ii) Branch Chief, Region Manager, Area Superintendent
- iii) Safety Coordinator (functional area)

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- iv) District Safety and Health Officer (district employee)
- v) Headquarters Safety and Health Officer (Headquarters employee)

ACCIDENT INVESTIGATION REPORT #1-  
Minor Personal Injury Accident Investigation Report

Date of Accident or Event: \_\_\_\_\_ Time of Day: \_\_\_\_\_ am \_\_\_\_\_ pm

Name \_\_\_\_\_ of \_\_\_\_\_ Injured \_\_\_\_\_ Employee:

\_\_\_\_\_

Name \_\_\_\_\_ of \_\_\_\_\_ Supervisor/Investigator:

\_\_\_\_\_

What was the apparent nature of the employee's injuries?

\_\_\_\_\_  
\_\_\_\_\_

DESCRIPTION OF ACCIDENT: What was the employee doing?

\_\_\_\_\_  
\_\_\_\_\_

LOCATION: Where did the accident happen?

\_\_\_\_\_

WITNESSES: List the names of other employees who may be  
witnesses:

\_\_\_\_\_  
\_\_\_\_\_

|                          |                                |                                                  |
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UNSAFE CONDITIONS: What was unsafe about the operation, equipment/tools, or the location? Why did the unsafe condition exist?

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UNSAFE ACTS: What was done/not done, or what did anyone do/fail to do that led to the accident?

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RECOMMENDATIONS: What action has been/should be taken to prevent a similar accident?

1. 

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2. 

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3. 

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REMARKS OR COMMENTS:

PREPARED BY: \_\_\_\_\_ DATE: \_\_\_\_\_  
 \_\_\_\_\_ APPROVED BY: \_\_\_\_\_  
 DATE: \_\_\_\_\_

COPY SENT TO:

|                          |                                |                                            |
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District/Headquarters Safety Office

DATE:

\_\_\_\_\_

\_\_\_\_\_

DATE:

\_\_\_\_\_

### **SOALAN/QUESTION :**

1. What are the NADOPOD stand for?

.....  
 .....

2. Why reporting of accident to authority is important?

.....  
 .....

3. How soon the reporting of any fatality accidents happen at workplace to the authority?

.....  
 .....

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